

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687751729014

अनुबंध तिथि | Generated Date : 25-Feb-2025

बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2024/B/5584053](#)

संगठन विवरण Organisation Details		खरीदार विवरण Buyer Details				
प्ररूप Type :	Central PSU	पद Designation :	Senior Manager E and M			
मंत्रालय Ministry :	Ministry of Coal	संपर्क नंबर Contact No. :	88304-47146-			
विभाग Department :	COAL INDIA LIMITED	ईमेल आईडी Email ID :	ra.ninawe@nic.in			
संगठन का नाम Organisation Name :	Central Mine Planning and Design Institute Limited	जीएसटीआईएन GSTIN :	27AAACC7475N1Z4			
कार्यालय क्षेत्र Office Zone:	CMPDI Regional Institute 4 Nagpur	पता Address :	CMPDI CAMPUS, KASTURBA NAGAR, JARIPATKA, NAGPUR, NAGPUR CITY, MAHARASHTRA-440015, India			
वित्तीय स्वीकृति विवरण Financial Approval Detail		भुगतान प्राधिकरण विवरण Paying Authority Details				
आईएफडी सहमति IFD Concurrence :	No	Role:	PAO			
प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval:	Regional Director	भुगतान का तरीका Payment Mode:	Offline			
वित्तीय अनुमोदन का पदनाम Designation of Financial Approval :	HOD F	पद Designation :	Asst MANAGER x28FINANCEx29			
		ईमेल आईडी Email ID :	yogitaudinia.wcl@nic.in			
		जीएसटीआईएन GSTIN :	N			
		पता Address:	CMPDI CAMPUS, KASTURBA NAGAR, JARIPATKA, NAGPUR, NAGPUR CITY, MAHARASHTRA-440015, India			
विक्रेता विवरण Seller Details						
जेम विक्रेता आईडी GeM Seller ID :	3A2C180000099143					
कंपनी का नाम Company Name :	LINUX LAB TECHNOLOGIES					
संपर्क नंबर Contact No. :	08793342945					
ईमेल आईडी Email ID :	linuxlabtechnologies@gmail.com					
पता Address :	Office No. 9&11, 3rd Floor,Swapnasphurti Business Center , Nr. Amar Business Zone,,Veerbhadra Nagar,Baner, Pune, MAHARASHTRA-411045, -					
एमएसएमई पंजीकरण संख्या MSME Registration number :	UDYAM-MH-26-0008518					
जीएसटीआईएन GSTIN:	27AUQPN9328L1ZP (R) , (M)					
खरीदार द्वारा मूल्यांकित एमआईआई स्थिति MII Status as evaluated by buyer :	Verified					
खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer :	Verified					
एमएसई सामाजिक श्रेणी MSE Social Category :	General					
एमएसई लिंग श्रेणी MSE Gender :	Male					
*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा GST / Tax invoice to be raised in the name of - Consignee						
वितरण निर्देश Delivery Instructions : NA						
उत्पाद विवरण Product Details						
#	आइटम विवरण Item Description	आइटम विवरण Ordered Quantity	इकाई Unit	इकाई मूल्य (INR) Unit Price (INR)	कर विभाजन (INR) Tax Bifurcation (INR)	मूल्य (INR में सभी शुल्क और कर सहित) Price (Inclusive of all Duties and Taxes in INR)
1	उत्पाद का नाम Product Name : HPC High End Desktop Computer with Warranty 3 Year ब्रांड Brand : HPC ब्रांड प्रकार Brand Type : Registered Brand कैटलॉग की स्थिति Catalogue Status: OEM verified catalogue कैसे बेचा जा रहा है Selling As : OEM श्रेणी का नाम और चतुर्थांश Category Name & Quadrant : High End Desktop Computer (Q2) मॉडल Model: HPC SUKHOI ULTRAFAST DESKTOP COMPUTER एचएसएन कोड HSN Code: 8471	9	pieces	91,500	NA	823,500
कुल ऑर्डर मूल्य Total Order Value (in INR)						823,500
परेषिती विवरण Consignee Detail						
क्र.सं. S.No	परेषिती Consignee	वस्तु Item	लॉट नंबर Lot No.	मात्रा Quantity	दिनांक के बाद डिलीवरी शुरू करना है Delivery Start After	वितरण पूरा कब तक करना है Delivery To Be Completed By

1	पद Designation :- ईमेल आईडी Email ID : ra.ninawe@nic.in संपर्क Contact : 88304-47146- जीएसटीआईएन GSTIN : 27AAACC7475N1Z4 पता Address : CMPDI CAMPUS, KASTURBA NAGAR, JARIPATKA, NAGPUR, NAGPUR CITY, MAHARASHTRA-440015, India	HPC High End Desktop Computer with Warranty 3 Year	-	9	25-Feb-2025	11-Apr-2025
Product Specification for HPC High End Desktop Computer with Warranty 3 Year						
विनिर्देश Specification		उप-विनिर्देश Sub-Spec	मूल्य Value			
PROCESSOR	Description of Stores		Desktop Computer with Table Mount Monitor System with Compatible Chipset as per Processor make with Minimum 6 USB Port			
	Base Processor Number		NA for Higher Processor			
	Higher Processor Number		Intel Core i9- 12900			
	Out of Band Management		Intel vPro			
MOTHERBOARD	Expansion Slots (PCIe x 1)		1			
	Expansion Slots (PCIe x 4)		0			
	Expansion Slots (PCIe x 16)		1			
	Expansion Slots (M Dot 2) for SSD		1			
	Expansion Slots (M Dot 2) for WiFi		1			
	Trusted Platform Module		No TPM			
GRAPHICS	Graphics Type		Integrated			
	Graphic Card Make and Model - Must declare		Intel® UHD Graphics 770			
	Size of Memory in Case of Dedicated Graphic Card (GB)		0			
OPERATING SYSTEM	Factory Pre-loaded Operating System		Window 11 Professional			
	Recovery Media for OS		Stored in Partition of the Hard Disk			
MEMORY (RAM)	Type of RAM		DDR5			
	RAM Size (Memory Card/Module) (in GB) (Capacity to be Installed in the System)		32			
	Memory Expandable up to (in GB)		128			
	Total Numbers of DIMM Slots Available		4			
	Number of DIMM Slots populated with Memory Card		1			
STORAGE	Type of Storage Installed with the System		NVME - SSD			
	Primary Storage Capacity (in GB)		1024			
	Availability of Secondary Storage		HDD@7200RPM			
	Secondary Storage Capacity (in GB)		2048			
BAYS AVAILABILITY	Number of Internal Bays Available, Size 2 Point 5 Inch		1			
	Number of Internal Bay Populated, Size 2 Point 5 Inch		1			
	Number of Internal Bays Available, Size 3 Point 5 inch		2			
	Number of Internal Bay Populated, Size 3 Point 5 inch		1			
CABINET	Cabinet Form Factor		Tower (More than 13 to 26 Liters)			
	Bays for Optical Drive		1			
	Optical Drive		No Optical Drive			
	Audio Interface Type		Universal 3.5 mm Audio Jack (Support for Audio-in and Audio out),Audio-In,Audio-Out			
CONNECTIVITY	Type of Ethernet Ports		10/100/1000 on board Integrated Gigabit Port			
	Number of Ethernet Ports		1			
PORTS	Number of USB Type A Ports (Version 2 Point 0)		4			
	Number of USB Type A Ports (Version 3 point 2 Gen 1)		2			
	Number of USB ports Type C		1			
	Number of Serial Ports		0			
	Number of Parallel Ports		0			
	Number of VGA Ports		0			

	Number of HDMI Ports	1
	Number of DP Ports	1
Monitor	Availability of Monitor	Yes as per IS 13252 (Part 1)
	Panel Type	In Plane Switching (IPS)
	Display Technology	LED Backlit LCD (Liquid Crystal Display)
	Screen Size (in CMs)	68.1 - 73 (26.81" - 28.74")
	Maximum Resolution (Pixels)	1920 x 1080 (Full HD)
	Brightness (in Nits)	200 to 250
	Image Aspect Ratio	16:9
	Refresh Rate (in Hz)	60 to 70
	Monitor Port	HDMI,VGA,Display Port
	Integrated Webcam with Mic	No
	Power Supply for Monitor	External Power Adapter
	Speaker	Yes
INPUT DEVICES	Mouse Connectivity	USB Wired
	Keyboard Connectivity	USB Wired
	Type of Keyboard	Standard
POWER	Power Supply Capacity- Maximum (in Watt)	300
	Minimum Power Efficiency Range (%)	80 - 84
OPERATING CONDITION	Minimum Operating Temperature (in Degree Celsius)	1
	Maximum Operating Temperature (in Degree Celsius)	40
	Operating Humidity (RH) (in Percentage)	10 to 90
WARRANTY	On Site OEM Warranty (In year)	3
CERTIFICATION	Availability of RoHS Certificate	Yes
	Availability of Certification for Environmental Management System with Manufacturer	Yes. As per IS/ISO:14001
	Compliance of Information Security, Cybersecurity and Privacy Protection- Information Security Management Systems Requirements	Yes. Complies as per IS/ISO/IEC 27001: 2022
	Availability of EPR Registration in Respect of the Manufacturer as per e-Waste Rules as Amended Up To Date	Yes
	Agreed to Provide a Copy of EPR Registration Certificate to Buyer on Demand	Yes
खरीदार परिभाषित अतिरिक्त विशिष्टता के लिए Buyer Defined Additional Specification for HPC High End Desktop Computer with Warranty 3 Year		
विनिर्देश Specification		मूल्य Value
Final Specifications		As per Annexure-A
शुद्धिपत्र Corrigendum		
1. तक बढ़ाया गया Extended Upto : 2024-11-21 17:00:00		
ईपीबीजी विवरण ePBG Detail		
सलाहकार बैंक Advisory Bank :		NA
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):		NA
नियम और शर्तें Terms and Conditions		
1. General Terms and Conditions-		
1.1 This contract is governed by the General Terms and Conditions , conditions stipulated to this Product/Service as provided in the Marketplace.		
1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable		

1.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

2. Buyer Added Bid Specific Terms and Conditions-

2.1 Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

2.2 Generic

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

2.3 Generic

Installation, Commissioning, Testing, Configuration, Training (if any - which ever is applicable as per scope of supply) is to be carried out by OEM / OEM Certified resource or OEM authorised Reseller.

2.4 Generic

IT equipment shall be IPv6 ready from day one.

2.5 Generic

Malicious Code Certificate:

The seller should upload following certificate in the bid:-

(a) This is to certify that the Hardware and the Software being offered, as part of the contract, does not contain Embedded Malicious code that would activate procedures to :-

- (i) Inhibit the desires and designed function of the equipment.
- (ii) Cause physical damage to the user or equipment during the exploitation.
- (iii) Tap information resident or transient in the equipment/network.

(b) The firm will be considered to be in breach of the procurement contract, in case physical damage, loss of information or infringements related to copyright and Intellectual Property Right (IPRs) are caused due to activation of any such malicious code in embedded software.

2.6 Generic

Manufacturer Authorization: Wherever Authorised Distributors/service providers are submitting the bid, Authorisation Form /Certificate with OEM/Original Service Provider details such as name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid

2.7 Generic

Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

2.8 Generic

1. The Seller shall not assign the Contract in whole or part without obtaining the prior written consent of buyer.
2. The Seller shall not sub-contract the Contract in whole or part to any entity without obtaining the prior written consent of buyer.
3. The Seller shall, notwithstanding the consent and assignment/sub-contract, remain jointly and severally liable and responsible to buyer together with the assignee/ sub-contractor, for and in respect of the due performance of the Contract and the Sellers obligations there under.

2.9 Generic

Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate the Contract or any part thereof by a written notice to the Seller, if:

- i) The Seller fails to comply with any material term of the Contract.
- ii) The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.
- iii) The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.
- iv) The Seller becomes bankrupt or goes into liquidation.
- v) The Seller makes a general assignment for the benefit of creditors.
- vi) A receiver is appointed for any substantial property owned by the Seller.
- vii) The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.

2.10 Generic

While generating invoice in GeM portal, the seller must upload scanned copy of GST invoice and the screenshot of GST portal confirming payment of GST.

2.11 Forms of EMD and PBG:

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

CMPDI RI IV NAGPUR

payable at

NAGPUR

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

2.12 Forms of EMD and PBG:

Bidders can also submit the EMD with Payment online through RTGS / internet banking in Beneficiary name

CMPDI RI IV NAGPUR

Account No.

11172255281

IFSC Code

SBIN0000432

Bank Name

STATE BANK OF INDIA

Branch address

KINGSWAY NAGPUR MAHARASHTRA -440001

Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer along with bid.

2.13 Forms of EMD and PBG:

Successful Bidder can submit the Performance Security in the form of Account Payee Demand Draft also (besides PBG which is allowed as per GeM GTC). DD should be made in

favour of

CMPDI RI IV NAGPUR

payable at

NAGPUR

. After award of contract, Successful Bidder can upload scanned copy of the DD in place of PBG and has to ensure delivery of hard copy to the original DD to the Buyer within 15 days of award of contract.

2.14 Scope of Supply:

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

2.15 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

2.16 Warranty:

Warranty period of the supplied products shall be 3 years from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

2.17 Buyer Added Bid Specific ATC:

Buyer Added text based ATC clauses

Procurement from established & proven sources:

Procurement against this tender shall be made only for proven items from established & proven sources, who fulfils the following criteria:

(i) Offers of the Bidders, who are past suppliers to Mining Industry and / or other Industries (Private or Government Department/ Public Sector Undertaking – Indigenous or Global), will be considered eligible for participation, if they have supplied* the tendered item / similar item, during the preceding 5 years from the date of tender opening and their performance has been found satisfactory.

***For consumables/Spares/Software: At least 20 % of required quantity of this tender.—**

*For Equipment: At least one number of the Equipment.

Bidders should upload copies of supply orders along with an undertaking, on the Letter Head of the Bidder, that the said supply order has been successfully executed and performed satisfactorily for one year in support of their eligibility as stipulated above.

(ii) Bidders are required to submit a Self-Certificate in the following format, along with the Proof of payment against the Purchase Order(s)/ Rate Contract(s) and Commissioning Certificate(s) (in case of Equipment, P & M, etc. where installation & commissioning is required):

"The items covered in the Purchase Order(s)/ Rate Contract(s) copies enclosed with our offer have been fully executed and have performed satisfactorily as per the provisions of respective Purchase Order(s)/ Rate Contract(s) for minimum one year from the date of commissioning and all the complaints/ claim(s) lodged by the purchaser, if any, have been attended to and no complaints/ claim(s) are pending.

" In case, any specific Purchase Order(s) has/have not been fully executed and any complaint/claim is pending, then details of such cases to be categorically mentioned with the reasons thereof so that decision making is in clear perspective without any hidden facts in the subject matter.

The authenticity of the self-certificate as well as other documents submitted/uploaded by the bidder will solely be their responsibility and appropriate action will be taken by CMPDIL if it is subsequently found to be misleading/false/forged.

Note: Similar Equipment shall be such Equipment, which fulfils the following:

(a) Performs almost identical operations as the quoted model.

(b) Should be equal to or higher than the tendered capacity.

(c) Uses sub-components, sub-systems and major assemblies of substantially similar design & construction to the model quoted – only rating specifications may differ (Lower or Higher)

(iii) Acceptance Criteria for similar Equipment:

In case, the bidder claims proven-ness of the quoted model based on similar equipment, the similar equipment should have performed satisfactorily for a minimum period of one year from the date of commissioning and the quoted model should have worked for a minimum period of six months from the date of commissioning within the window period of 5 years.

In case the bidder claims proven-ness of the quoted model based on similar equipment and the similar equipment has performed satisfactorily for a minimum period of one year from the date of commissioning, but the quoted model has not worked for a minimum period of six months, the offer may be accepted subject to the conditions mentioned under here under:

a. The quoted model should have been designed, manufactured and supplied to the end-user but has not been commissioned or if commissioned, has not completed six months of operation after the commissioning . Documentary evidence for past supply of the quoted model is to be provided along with the offer.

or

The quoted model is an upgraded version of the existing model with improved and the latest drive line / system etc. and has not been manufactured and/or supplied earlier. In such case, the basic model should remain the same. Documentary evidence of past supply of the existing model whose upgraded version has been offered, is to be provided along with the offer.

b. (i) The successful bidder will be allowed to supply the quantity (or quantity of the first lot) as indicated in Schedule of Requirement.(ii) The firm shall be required to furnish additional Performance Bank Guarantee of 100% of the total landed value of equipment along with spares & consumables for warranty period for the quantity.

c. On satisfactory performance of all the equipment/first lot (if applicable) for one year from the date of commissioning [to be certified by the Head of the User Deptt., clearance shall be obtained from the order issuing authority for supply of the remaining quantity, if any, as per Schedule of Requirement.

d. The additional 100% Performance Bank Guarantee shall be returned only after satisfactory performance of all the equipment/first (if applicable) lot for one year from the date of commissioning.

e. The original 10% PBG for the total contract value will be retained for entire contract period.

Note:

In case of unsuccessful performance of the equipment/first lot (if applicable) supplied by the firms who qualify as per above clauses, the following shall be applicable:

- i) The 100% Additional Performance Bank Guarantee for the equipment/first lot (if applicable) shall be cashed by CMPDI. Consequent upon the encashment of the 100% Bank Guarantee due to non-achievement of stipulated minimum availability percentage, the Supplier shall take back the equipment at no cost to the Purchaser and the contract for the balance quantity shall be cancelled.
- ii) The original 10% performance bank guarantee shall be returned to the supplier after recovery of penalty for non-achievement of guaranteed availability in respect of equipment/first lot (if applicable).
- iii) The performance of any individual equipment/first lot (if applicable) under this clause shall not be considered for proven-ness in future tenders of CIL & subsidiaries for any capacity of this type of equipment.
- iv) In case of equipment imported under Project Concessional Duty (PCD), the amount of Customs Duty Concession i.e. the differential amount of Normal Customs Duty (NCD) and PCD availed during import shall be recovered from the supplier with interest for refund to the Customs Authorities. The supplier shall deposit such amount to the purchaser on demand else the same shall be recovered from the Security Deposit Bank Guarantee / Performance Bank Guarantee of the supplier.

Prior experience – prior turnover criteria for Startup, Micro and Small Enterprises (MSEs) in Public Procurement:

(i) Prior experience and prior turn over criteria is not applicable for Startup & MSEs in respect of either of the following situations and no further documents regarding proven-ness will be required to be submitted by this category of Bidders.

a. If Bidders have submitted documents to prove the Startup / MSE status for the tendered item without certificate towards quality, assurance and capability from some authority like MSME, NSIC, etc., the Tender Inviting Authority, if required, may assess the techno-commercial capability of the vendors to manufacture and deliver goods as per the prescribed quality and technical specification before awarding contract to the firm. For this purpose, a 'PROFORMA for Equipment and Quality Control' (as per the format at Annexure - I attached under 'Buyer uploaded ATC document') has been enclosed in the tender documents and such MSEs / STARTUPS should submit the details of plant & machinery, quality control arrangements, etc., in the above PROFORMA along with their bids for verification of their technical capability.

If required, a techno-commercial team of the organization may visit the manufacturing unit of the vendor without any undue delay for quick finalization of the tenders.

b. If favorable technical capability reports obtained earlier on such firms for supply of the item in question as per the required specification is available, these may be considered, provided date of such reports is not more than one year from the date of opening of bids.

In case there is deficiency in technical capacity of the firm, the same shall be communicated to them by the Tender Inviting Authority for improvement in the quality of their product for future tenders, clearly indicating that their offer cannot be considered for relaxation against the tender in question and to avoid any future complications. The issues relating to Technical capability may be decided by the Head of the Technical Department.

c. If Bidders have submitted documents to prove the startup / MSE status for the tendered item and whose products are ISI marked / DGMS approved / covered under DGS&D Rate Contracts on them / current holding Rate Contracts with CIL or its Subsidiary for supply of the tendered item / supplied and proven in CIL or its Subsidiary Companies / Proven product of the Ancillary unit of a Subsidiary Company of CIL, they will be required to submit the applicable related documents, duly self-attested, for relaxation: -

· Valid BIS Marking License for the quoted items on them.

OR

· Rate contract as issued by CIL / any other Subsidiary for the quoted items on them.

OR

· Valid DGMS Approval certificate for the quoted items on them.

OR

· Proven Ancillary certificate issued by Subsidiary Companies for the quoted items on them.

The Document (s) / Certificate (s), by the Bidders for ISI marking and DGMS approval for any relaxation should be valid as on date of tender opening and a copy of such document / certificate valid as on date of supply, duly self-attested, must accompany their bill(s).

(i) N.B.:

a. Definition and Eligibility of Startup shall be in line with OM vide letter no. F-20/2/2014 PPD (pt.) Dtd. 25.07.2016 of Under Secretary to GOI, Ministry of Finance, Department of Expenditure, Procurement Policy Division, New Delhi, with subsequent amendments, if any.

b. Definition of MSEs shall be as per Public Procurement 2012, with subsequent amendments, if any.

SECURITY-CUM-PERFORMANCE BANK GUARANTEE:

The successful Bidder shall furnish a Performance Guarantee, towards performance of the supply order / contract, equivalent to 10% of the total value of the supply order / contract as per the format at Annexure -IV attached under 'Buyer uploaded ATC document'. The value of the Order will be arrived at by adding all the taxes and duties applicable, such as CGST, SGST or IGST or UT-GST, etc., to the FOR Destination price of the material as applicable on the date of tender opening.

The BG shall be issued by a RBI Scheduled Bank in India on SFMS platform and shall be irrevocable and unconditional. CMPDI shall have the powers to invoke it notwithstanding any dispute or difference between contractors and CMPDI, pending before the court, tribunal, arbitrator or any other authority. The Issuing Bank has to send the BG details through SFMS platform to our bank, details of which are as follows:

Name of Bank: State Bank of India; Branch: Kingsway Nagpur ; IFSC: SBIN0000432; A/c No: 11172255281

Address: Kingsway Nagpur, Maharashtra – 440001.

Such Bank Guarantee should remain valid till 3 months after completion of warranty period of all the equipment/ items covered in the contract. The release of the Performance Bank Guarantee(s) shall be subject to satisfactory performance of the equipment/item during the warranty period and fulfilment of contractual obligations failing which, action for further extension or encashment of PBG, as deemed suitable shall be taken. The Bank Guarantee will have to be extended, if required.

In case the bidder does not have after sales service support facilities in India and if an undertaking has been submitted along with the offer that in the event of placement of order on them, they will establish the above facilities in India within the completion period of warranty of the equipment commissioned, then the successful Bidder shall furnish an additional Performance Guarantee equivalent to 30% of the total value of the supply order / contract to remain valid for the entire Warranty period + 3 month for entering into AMC/ CAMC, if any + additional 3 months for claim period. This 30% PBG shall be released after establishment of after sales service support facility in India, subject to confirmation of the same by the concerned Head of Technical Department. However, the supplier has to submit PBG of 10% of the total contract as stated above. This 10% PBG will be released after satisfactory performance of all equipment/items and fulfilment of contractual obligations including warranty obligations.

If Performance Guarantee is submitted in the form of 'Bank Guarantee' the original instrument thereof shall be retained by CMPDI after its relinquishment / absolution and returned only against specific request, after completion of the claim period.

In cases where the supplier does not submit the PBG in time or as per the prescribed format in line with the contract stipulations, the PBG amount may be deducted from the first bill.

If or in case of insufficient amount, from subsequent bill(s) of the supplier till the full PBG amount is deducted. This amount shall be refunded to the supplier upon acceptance of PBG submitted by them.

N.B.: In case of forfeiture of the Performance Bank Guarantee, GST will be accounted for as per applicable provisions.

Payment to MSME through TReDS:

In order to improve the Working Capital of MSME Vendors, Govt has given Guidelines for Payment to MSMEs through TReDS (Trade Receivable Discounting System). CMPDI is already on Board at TReDS platform of Receivable Exchange of India Ltd. (RXIL) with its Membership Code: CE0000779.

The contact details of RXIL

Website : www.rxil.in

Portal : www.treds.in

Contact Person :

(i) Ms Upasana Majumder (Mob 8697212759; E-mail upasana.majumder@rxil.in)

(ii) Mr. Mainak Mandal (Mob 9475622182; E-mail mainak.mandal@rxil.in) The willing MSME Vendors, who are participating in this tender should ensure about their respective on-boarding at RXIL and should mention their Membership Code in their offer. The MSMEs by on-boarding at RXIL shall be deemed to have agreed for payment through TReDS platform of RXIL by following prescribed procedures regarding factoring of invoices etc. at the said platform. Undertaking for using TReDS Platform of RXIL, if applicable. (Annexure - II attached under 'Buyer uploaded ATC document')

List of documents to be submitted by the bidder with their Offer:

1. MSE Certificate, if applicable.
2. OEM Authorization/Distributor Authorization/Self Manufacturer certificate.
3. Documents as per Proven-ness criteria.
4. Proforma for Equipment and Quality Control, if applicable (Annexure - I attached under 'Buyer uploaded ATC document')
5. Our Final specifications are as per Annexure-A, so bidders have to Sign, Compliance and upload the Annexure-A towards acceptance of technical specifications and Additional Buyer specific terms and conditions.
6. Certification for Local Content - Make in India Compliance (Annexure - III attached under 'Buyer uploaded ATC document')
7. Any other document as per bid document.

2.18 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file](#).

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है। इस दस्तावेज़ का प्रिंट आउट भुगतान/लेनदेन उद्देश्य के लिए मान्य नहीं है।

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